

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #15	CCRB Case #: 202104429	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/16/2021 7:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/16/2023	Precinct: 73		
Date/Time CV Reported Fri, 07/16/2021 11:56 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/27/2021 11:14 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Nicole Stahurski	09112	970877	REC TNG
2. POM Brian Cheng	16145	957452	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Cheng	Abuse: Police Officer Brian Cheng entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . POF Nicole Stahurski	Abuse: Police Officer Nicole Stahurski entered § 87(2)(b) in Brooklyn.	B . Exonerated
C . POM Brian Cheng	Abuse: Police Officer Brian Cheng threatened to arrest § 87(2)(b)	C . Exonerated
D . POM Brian Cheng	Discourtesy: Police Officer Brian Cheng spoke discourteously to § 87(2)(b)	D . Substantiated
E . POM Brian Cheng	Force: Police Officer Brian Cheng hit § 87(2)(b) against an object.	E . Substantiated
F . POM Brian Cheng	Discourtesy: Police Officer Brian Cheng acted discourteously toward § 87(2)(b)	F . Substantiated
G . POM Brian Cheng	Abuse: Police Officer Brian Cheng threatened § 87(2)(b) with the use of force.	G . Substantiated

Case Summary

On July 16, 2021, § 87(2)(b) filed this complaint with IAB via telephone. On July 27, 2021, the complaint was forwarded to the CCRB via IAB log § 87(2)(b)

Prior to this incident, § 87(2)(b) nephew, § 87(2)(b) rented a room from § 87(2)(b) at § 87(2)(b) in Brooklyn. § 87(2)(b) and § 87(2)(b) got into a dispute over his tenancy, which they took to housing court.

On July 16, 2021, § 87(2)(b) gave his keys to § 87(2)(b) and asked her to retrieve his belongings from his room. At approximately 7:00 p.m., § 87(2)(b) went to § 87(2)(b) entered the building and went inside § 87(2)(b) room. § 87(2)(b) was not with her. § 87(2)(b) then called 911 to report that § 87(2)(b) was trespassing on the property. Police Officer Brian Cheng and Police Officer Nicole Stahurski of the 73rd Precinct responded to the building and entered § 87(2)(b) room (**Allegations A and B: Abuse of Authority – Entry of premises, exonerated**). Police Officer Cheng threatened to arrest § 87(2)(b) (**Allegation C: Abuse of Authority – Threat of arrest, exonerated**). He also repeatedly used profanity towards § 87(2)(b) (**Allegation D: Discourtesy – Word, substantiated**). Police Officer Cheng also swung the room's door at § 87(2)(b) striking her (**Allegation E: Force – Hit against inanimate object, substantiated**). He then took her phone and ended a telephone call she was making (**Allegation F: Discourtesy – Action, substantiated**). § 87(2)(b) then walked out of the building. As she left, Police Officer Cheng threatened to strike her and push her down a staircase (**Allegation G: Abuse of Authority – Threat of force, substantiated**).

The investigation obtained several BWC recordings from this incident, including Police Officer Cheng's recording. The footage is attached in IA #35 and summarized in IA #41 (Board Review #01-02). No other footage was obtained from this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Brian Cheng entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Police Officer Nicole Stahurski entered § 87(2)(b) in Brooklyn.

On August 2, 2021, § 87(2)(b) was interviewed by the CCRB. On August 13, 2021, § 87(2)(b) provided a telephone statement (Board Review #03). On February 3, 2022, Police Officer Cheng was interviewed at the CCRB. Police Officer Stahurski was not interviewed after it was determined that Police Officer Cheng's testimony and the BWC footage rendered her testimony unnecessary.

It is undisputed that § 87(2)(b) rented a room from § 87(2)(b) the owner of § 87(2)(b) and § 87(2)(b) later got into a dispute over his tenancy and took the case to housing court. On July 16, 2021, § 87(2)(b) gave a set of keys to the room to his aunt, § 87(2)(b) went to § 87(2)(b) by herself. There, she encountered § 87(2)(b) who told her that she was not allowed onto the property and warned § 87(2)(b) that she would call the police if she entered. § 87(2)(b) ignored this warning, entered the building and went into § 87(2)(b) room. § 87(2)(b) called 911 and reported that an unknown female was trespassing at her home. Police Officer Cheng and Police Officer Stahurski responded to the building. § 87(2)(b) told them that § 87(2)(b) was trespassing. The two officers went into § 87(2)(b) room and told § 87(2)(b) that she had to leave the premises. § 87(2)(b) eventually left. She was not arrested or issued a summons. Afterwards, § 87(2)(b) and § 87(2)(b) both called 911 to

complain about Police Officer Cheng's actions. § 87(2)(b) and § 87(2)(b) went to § 87(2)(b) and met with Police Officer Cheng and his patrol supervisor, Sergeant Troy Peacock.

§ 87(2)(b) stated that § 87(2)(b) asked her to retrieve his clothing from his apartment. Later, when the police arrived, Police Officer Cheng asked § 87(2)(b) to identify herself. § 87(2)(b) declined to identify herself because she did not want § 87(2)(b) to learn this information.

§ 87(2)(b) stated that § 87(2)(b) had moved out of the rented room prior to the incident. On July 15, 2021, § 87(2)(b) noticed several unidentified individuals enter the building and go inside § 87(2)(b) room. They appeared to have copies of the room key. § 87(2)(b) suspected that these individuals were trying to illegally take over § 87(2)(b) room. On July 16, 2021, § 87(2)(b) encountered § 87(2)(b) entering the house using a set of keys. § 87(2)(b) did not recognize § 87(2)(b) from any previous encounters. She claimed that § 87(2)(b) had given her the room's key. Later, when the officers arrived and entered the apartment, they asked § 87(2)(b) to identify herself. § 87(2)(b) did provide a name. § 87(2)(b) did not recall what it was but stated that it was not § 87(2)(b) real name. Later, however, she identified herself using her real name. Police Officer Cheng told § 87(2)(b) that she had to leave because § 87(2)(b) was not there to vouch for her.

Police Officer Cheng stated that he and Police Officer Stahurski responded to § 87(2)(b) after receiving a report of an individual trespassing there. He did not recall receiving any additional information before arriving. When the officers arrived, § 87(2)(b) informed them that she had previously rented a room to § 87(2)(b). She later took § 87(2)(b) to housing court, where he was ordered to move out. After § 87(2)(b) complied with the order, an unidentified female started squatting in § 87(2)(b) room. § 87(2)(b) denied knowing the woman and denied having given her permission to live there. She told Police Officer Cheng that the female was trespassing and that she wanted him to remove her from the premises. Police Officer Cheng and Police Officer Stahurski entered the room and confronted the female. Police Officer Cheng explained that the only reason that they went inside was because the female was trespassing. Once inside, Police Officer Cheng asked the female to identify herself. She identified herself as § 87(2)(b). Police Officer Cheng did not recall having any difficulty obtaining this information from her. He instructed § 87(2)(b) to return the keys to § 87(2)(b) and leave the premises. Police Officer Cheng felt that he had probable cause to arrest her for trespassing but decided not to arrest her because he did not feel that it would be an appropriate remedy for the situation.

ICAD event § 87(2)(b) records that § 87(2)(b) called 911 and requested police assistance in dealing with a trespasser at § 87(2)(b). She stated that an unidentified female had entered her house using a set of keys. She did not recognize this female. Police Officer Cheng and Police Officer Stahurski were assigned to respond to this report. They were informed by a police dispatcher that the landlord at § 87(2)(b) had reported a trespasser at the location, and that the situation may have been a landlord-tenant dispute (Board Review #04-06).

At the start of Police Officer Cheng's BWC footage, he is seen holding up a document. A female, identified as § 87(2)(b), points at the document. This action takes place before Police Officer Cheng triggers his BWC, so there is no audio. § 87(2)(b) then escorts Police Officer Cheng up to the room. The door is open and § 87(2)(b) is standing inside. Police Officer Cheng and Police Officer Stahurski enter. At 1:00 into the recording, Police Officer Cheng triggers his BWC, activating the sound. He tells § 87(2)(b) that § 87(2)(b) does not live in the room. § 87(2)(b) replies that he does. Police Officer Cheng tells her to leave. At 2:45 into the recording, § 87(2)(b) tells Police Officer Cheng that § 87(2)(b) had moved out of the apartment several days earlier, and that a security camera she owns had recorded several strangers moving into the apartment.

afterwards (Board Review #01).

Additional BWC footage was recorded later in the incident by Police Officer Cheng and Sergeant Peacock. It takes place after § 87(2)(b) leaves the apartment. § 87(2)(b) came to § 87(2)(b) and complained about Police Officer Cheng's conduct towards § 87(2)(b). He and § 87(2)(b) argue about his tenancy. During this conversation, § 87(2)(b) denies that he moved out of the apartment. § 87(2)(b) later admits that § 87(2)(b) was never formally evicted and that her proceedings against § 87(2)(b) in housing court are still ongoing. Sergeant Peacock informs § 87(2)(b) that, based on this information, § 87(2)(b) is still a legal tenant at § 87(2)(b) and has access to the premises (Board Review #01).

Officers may enter a private residence without a warrant in order to address an emergency situation. In order to justify an entry, three elements must be present. First, the police must have reasonable grounds to believe that there is an emergency at hand that requires their immediate intervention to protect life or property. Second, the search must not be primarily motivated by an intent to arrest or seize evidence. Third, there must be some reasonable basis, approximating probable cause, to associate the emergency with the location being entered. People v. Dallas, 8 N.Y.3d 890 (2007) (Board Review #07).

Under the emergency doctrine, officers may make a warrantless entry into a private residence when they have a reasonable belief that a person is trespassing at the location in order to prevent the commission of a crime. People v. Peterkin, 12 A.D.3d 1026 (App. Term, 4th Dept., 2004) (Board Review #08).

A landlord lacks the authority to consent to a warrantless search of their tenant's property. The tenant's expectation of privacy on the rented property holds until the moment that the tenant is evicted. After a landlord re-assumes possession of the rented property, they are able to provide officers with consent to perform a warrantless search. People v. Porto, 103 AD.2d 573 (App. Term, 2nd Dept., 1984). People v. Garrett, 258 A.D.2d 530 (App. Term, 2nd Dept., 1999) (Board Review #09-10).

§ 87(2)(g)
At the time of the entry, § 87(2)(b) had identified herself to the officers as the property's owner and § 87(2)(b) landlord. § 87(2)(g)
While the BWC footage shows that § 87(2)(b) eventually appeared at § 87(2)(b) and informed the police that he had not moved out or abandoned the property, this information did not come to light until after Police Officer Cheng and Police Officer Stahurski removed § 87(2)(b) from the premises. § 87(2)(g)
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§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation (C) Abuse of Authority: Police Officer Brian Cheng threatened to arrest § 87(2)(b)

It is undisputed that Police Officer Cheng asked § 87(2)(b) to identify herself.

§ 87(2)(b) did not mention Police Officer Cheng threatening to arrest her during this incident. When Police Officer Cheng asked her to identify herself, she initially declined. She told Police Officer Cheng that she did not want to identify herself in front of § 87(2)(b).

§ 87(2)(b) stated that when Police Officer Cheng first asked § 87(2)(b) to identify herself, § 87(2)(b) did provide a name. § 87(2)(b) did not recall what the name was but recalled that it was not § 87(2)(b) real name. Police Officer Cheng warned § 87(2)(b) that he would arrest her if she provided a fake name. § 87(2)(b) then provided her real name.

Police Officer Cheng stated that § 87(2)(b) provided her name to him upon request. Police Officer Cheng did not recall having any difficulty obtaining § 87(2)(b) name from her. He did not recall threatening to arrest § 87(2)(b) for providing a fake name. He did, though, note that providing a false identity would have been an arrestable offense.

Police Officer Cheng's BWC records his conversation with § 87(2)(b). At 1:25 into the recording, he asks § 87(2)(b) for her name. She identifies herself as § 87(2)(b) but does not give her last name. He tells her to provide her full name. He then tells her, "If you lie to me, you're going to jail." § 87(2)(b) states that she does not want to say her name in front of § 87(2)(b). Police Officer Cheng tells her, "You're giving it to me. If you don't give it to me, you're going to go to jail right now and we'll find out at the precinct." § 87(2)(b) then provides her full name and date of birth. At 4:50 into the recording, Police Officer Cheng states, § 87(2)(b) collect your shit and get out or you're going to jail" (Board Review #01).

New York Penal Law §190.23 states that a person is guilty of false personation when, after being informed of the consequences of such act, he or she knowingly misrepresents their actual name, date of birth or address to a police officer with intent to prevent such police officer from ascertaining such information (Board Review #11).

New York Penal Law §140.05 states that a person is guilty of trespass when they enter or remain unlawfully in or upon premises (Board Review #12).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **exonerated**.

Allegation (D) Discourtesy: Police Officer Brian Cheng spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that Police Officer Cheng told her, “Get the fuck out,” and, “Give me the fucking keys.” When § 87(2)(b) complained that Police Officer Cheng was being rude, he replied, “I have my fucking camera, you want to see my camera?” As she left the building, Police Officer Cheng told her, “I’m going to push you down these fucking stairs.”

§ 87(2)(b) denied that Police Officer Cheng used any profanity during the incident.

Police Officer Cheng stated that § 87(2)(b) agreed to leave the apartment when he first ordered her to leave. She did not, however, start gathering her belongings or start to leave. She also did not appear to be paying attention to Police Officer Cheng. Police Officer Cheng became frustrated with § 87(2)(b) and used profanity towards her. Police Officer Cheng did not recall any specific discourteous statements that he used towards § 87(2)(b). He explained that he used profanity because § 87(2)(b) failure to comply with his orders caused him to lose his temper.

Police Officer Cheng’s BWC footage depicts his conversation with § 87(2)(b). § 87(2)(b) speaks in a calm manner during the conversation, while Police Officer Cheng shouts and acts in an irate manner. At 4:50 into the recording, Police Officer Cheng tells her, § 87(2)(b) “collect your shit and get out or you’re going to jail.” At 5:35 into the recording, he states, “Give me the key. Stop fucking around. I’ll find it if you can’t find it.” At 8:09 into the recording, § 87(2)(b) states that she is looking for her shoes. She moves the room’s door towards Police Officer Cheng. He then pushes the door back towards her and states, “Don’t fucking push the door at me! Put on the fucking... put these on and go!” At 8:40 into the recording, as he and § 87(2)(b) exit the room, Police Officer Cheng tells her, “You pushed a fucking door in my face” (Board Review #01).

NYPD Patrol Guide procedure 200-02 states that the NYPD is committed to accomplishing its mission of protecting lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to render services with courtesy and civility (Board Review #13).

Officers may use limited profanity in order to gain control of a dynamic situation. Officers may not use profanity when it serves no legitimate purpose and is intended to belittle or insult an individual. PD v. Pichardo, DAO-DCT Case #2015-15012 (Board Review #14).

§ 87(2)(g)

§ 87(2)(g) As shown on the BWC footage, Police Officer Cheng repeatedly used profanity § 87(2)(g) § 87(2)(b) § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation D** be closed as **substantiated**.

Allegation (E) Force: Police Officer Brian Cheng hit § 87(2)(b) against an object.

It is undisputed that at one point during the interaction inside § 87(2)(b) room, Police Officer Cheng stood in the doorway. § 87(2)(b) moved the door towards Police Officer Cheng. Police Officer Cheng then pushed the door back. § 87(2)(b) was not injured during this incident.

§ 87(2)(b) stated that after Police Officer Cheng took her phone, she tried to retrieve her shoes, which she had taken off and placed behind the room’s door. When she bent down to pick them up,

Police Officer Cheng swung the door towards her, striking her on the left side of her head. She initially stated that Police Officer Cheng also kicked her. Later, however, she stated that she did not recall if he kicked her.

§ 87(2)(b) also stated that § 87(2)(b) tried to retrieve her shoes from behind the door. While she was behind the door, she pushed it towards Police Officer Cheng, who was standing in the door frame. Police Officer Cheng appeared surprised by the door's movement. He reacted by pushing the door back towards § 87(2)(b) striking her in the shoulder.

Police Officer Cheng stated that he did not recall where § 87(2)(b) was positioned when she moved the door towards him. He did not recall if he could see her at the time. He did not recall if the door made contact with § 87(2)(b) when it swung back. Police Officer Cheng denied using any physical force towards § 87(2)(b) during this incident.

Police Officer Cheng's and Police Officer Stahurski's BWC footage both show when § 87(2)(b) and Police Officer Cheng moved the door. At 8:09 into Police Officer Cheng's recording, he is standing in the hallway with § 87(2)(b). He tells § 87(2)(b) to hurry up and exit the room. The door is fully open at the time. § 87(2)(b) tells Police Officer Cheng that she is looking for her shoes. He tells her, "You have shoes at your feet." § 87(2)(b) then closes the door about halfway. Police Officer Cheng steps into the doorway and pushes the door. The camera angle does not clearly show how far he pushes the door or if the door touches § 87(2)(b). He shouts, "Don't fucking push the door at me!" § 87(2)(b) jumps back from behind the door and shouts. He then tells her to put on her shoes and leave (Board Review #01).

Police Officer Stahurski's video provides a different angle of this interaction. At 5:25 into the recording, Police Officer Cheng tells her to leave. § 87(2)(b) tells him she is looking for her shoes. She moves the door a few inches away from the adjacent wall. Police Officer Cheng leans into the door frame and pushes the door back towards the wall. § 87(2)(b) grabs the door and swings it again away from the wall. She immediately bends down behind the door and reaches for the floor. While she is bent over, Police Officer Cheng pushes the door back towards § 87(2)(b). Police Officer Stahurski reaches out with her right hand and grabs the edge of the door and stops it, preventing it from striking § 87(2)(b). Police Officer Cheng then pushes against the door again with his left shoulder. The door strikes § 87(2)(b) left shoulder as she is bent over. She immediately stands back up and shouts (Board Review #01).

Police Officer Cheng was shown the portions of his and Police Officer Stahurski's BWC footage depicting him pushing on the door. He stated that he could not clearly see on the footage whether the door makes contact with § 87(2)(b). He denied that he deliberately pushed the door into § 87(2)(b) body.

Captain Omar Birchwood of the 73rd Precinct prepared a TRI report documenting this incident (Board Review #15). It states that § 87(2)(b) attempted to close the room's door to retrieve a shoe from behind it. When she bent down to get it, Police Officer Cheng opened the door, striking § 87(2)(b) on the shoulder.

Police Officer Cheng also prepared a TRI report (Board Review #16). Under the "Type of Force Used Against MOS," "Injury Sustained by MOS," "Type or Force Used by MOS" and "Reason for Force" sections, Police Officer Cheng wrote "N/A." The report does not specify any force that may have been used against § 87(2)(b).

NYPD Patrol Guide procedure 221-01 states that officers may use physical force when it is

reasonable to ensure an individual's safety, to protect life, or when it is reasonable to place a person in custody or prevent escape from custody. All uses of force must be reasonable relative to their circumstances. Factors to consider when determining whether a specific use of force was reasonable include the nature and severity of the crime, the actions taken by the subject, the immediacy of the perceived threat or harm that the subject's actions pose, the number of subjects in comparison to the number of officers, and the size, age, and condition of the subject in comparison to officers (Board Review #17).

§ 87(2)(g)

§ 87(2)(b) The BWC footage shows that § 87(2)(b) and PO Cheng both swung the door back and forth without hitting or otherwise harming each other. On Police Officer Cheng's second push, however, the door swung so fast that Police Officer Stahurski had to grab the door to stop it from hitting § 87(2)(b). Police Officer Cheng, however, pushed against the door again, causing it to hit § 87(2)(b) on her shoulder. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **substantiated**.

Allegation (F) Discourtesy: Police Officer Brian Cheng acted discourteously toward § 87(2)(b)

It is undisputed that § 87(2)(b) had a cell phone with her during the incident, and that she made at least one phone call during her interaction with Police Officer Cheng.

§ 87(2)(b) stated that when the officers entered the room, she called § 87(2)(b) to report what was happening. When Police Officer Cheng asked her for her identification, she decided to record him using her phone. She did not state whether she was still on her call with § 87(2)(b) at the time. Police Officer Cheng then grabbed the phone from her hand. § 87(2)(b) did not know if she started recording with the phone before he took it from her. Once § 87(2)(b) exited the building, Police Officer Cheng returned her phone.

§ 87(2)(b) stated that § 87(2)(b) called § 87(2)(b) while she was speaking to Police Officer Cheng. She denied that Police Officer Cheng took § 87(2)(b) phone from her during their interaction.

Police Officer Cheng stated that § 87(2)(b) was holding a cell phone when he entered the room. He could not tell at the time what she was doing with the phone. He did not hear her speaking into the phone. He did not know at that time whether she was making a call or a recording. § 87(2)(b) at first agreed to leave the room when ordered. She did not, however, actually depart. She did not seem to be paying attention to Police Officer Cheng. She instead focused her attention on her phone. Police Officer Cheng became frustrated at her lack of compliance. He then grabbed her phone to encourage her to leave the premises. When he took the phone, he saw that she was on a telephone call. He did not know who she was calling and did not hear her or the person on the other end of the line speaking. He did not recall pressing any buttons on the phone or operating it in any way. As soon as § 87(2)(b) left the building, Police Officer Cheng returned the phone to her.

§ 87(2)(b) use of her phone is most clearly depicted in Police Officer Stahurski's BWC recording. At 4:50 into the recording, Police Officer Cheng exits the room and speaks to § 87(2)(b) in the hallway. § 87(2)(b) then receives a phone call from § 87(2)(b). She tells him that the officers threatened to arrest him if he came to the location. At 5:30 into the recording, § 87(2)(b) tells Police Officer Cheng that she is looking for her shoes. She moves the door slightly towards him. He then pushes the door into her. He tells her to put her shoes on. At 5:40 into the recording, he takes the phone from her hand and ends the call. § 87(2)(b) asks for her phone back. Police Officer Cheng tells her that he will give it to her once she leaves. The officers walk § 87(2)(b) out of the building. At 6:40 into the recording, Police Officer Cheng returns the phone to § 87(2)(b) (Board Review #01).

Based on the BWC footage, the investigation determined that Police Officer Cheng did take § 87(2)(b) phone from her. It shows that she was on a telephone call at the time, and that Police Officer Cheng ended the call. Since she is not seen manipulating the phone or pressing any buttons or keys on it before he takes it, § 87(2)(g)

NYPD Patrol Guide procedure 200-02 states that the NYPD is committed to accomplishing its mission of protecting lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to render services with courtesy and civility (Board Review #13).

§ 87(2)(g)

it is recommended that **Allegation F** be closed as **substantiated**.

Allegation (G) Abuse of Authority: Police Officer Brian Cheng threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that after Police Officer Cheng pushed the door at her, she left the room and exited the building by descending a set of stairs. Police Officer Cheng followed her to the stairs. He told her, "I'm going to push you down these fucking stairs."

§ 87(2)(b) did not mention Police Officer Cheng threatening to use force of any kind against § 87(2)(b)

Police Officer Cheng stated that after he pushed on the door, § 87(2)(b) finally complied and left the room. As they exited, Police Officer Cheng told § 87(2)(b) that he would push her down the stairs. When asked why he said this, Police Officer Cheng denied that he was threatening to use force against her. He instead "advised" her that he would push her down the stairs if he "needed" to. When asked why he would need to push § 87(2)(b) down the stairs, Police Officer Cheng replied that he would have pushed § 87(2)(b) if she had tried to fight with him at the top of the staircase, as doing so would cause both of them to fall down the stairs.

Police Officer Cheng's BWC footage records his conversation with § 87(2)(b) as they walked out of the building. At 8:40 into the recording, § 87(2)(b) tells him, "Remember, you hit me." Police Officer Cheng replies, "I'll hit you again. Go! Who you talking to? Leave!" They then reach the top of a staircase. § 87(2)(b) asks him, "Why you push me down?" Police Officer Cheng replies, "I'll push you downstairs, too! Go!" They both descend the stairs and exited the building (Board Review #01).

Police Officer Cheng was shown this portion of his BWC footage. When asked why he made the statements heard on the video, he stated that he was informing § 87(2)(b) of what would happen to her if she tried to fight him.

NYPD Patrol Guide procedure 221-01 states that officers may use physical force when it is reasonable to ensure an individual's safety, to protect life, or when it is reasonable to place a person in custody or prevent escape from custody. All uses of force must be reasonable relative to their circumstances. Factors to consider when determining whether a specific use of force was reasonable include the nature and severity of the crime, the actions taken by the subject, the immediacy of the perceived threat or harm that the subject's actions pose, the number of subjects in comparison to the number of officers, and the size, age and condition of the subject in comparison to officers (Board Review #17).

§ 87(2)(g)
His BWC footage shows that § 87(2)(b) was complying with his instructions and exiting the premises at the time of the threat. The police officers outnumbered § 87(2)(b)

§ 87(2)(g)
She was cooperative and did not resist Police Officer Cheng in any way. § 87(2)(g)

it is recommended that
Allegation G be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) or § 87(2)(b) has been a party (Board Review #18).
- Police Officer Cheng has been a member of the service for seven years and has been a subject in four previous CCRB complaints and nine previous allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Stahurski has been a member of the service for one year and this is the first CCRB complain to which she has been a subject.

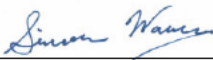
Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 5, 2021, the NYC Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Squad: 15

Investigator:	<u>Owen Godshall</u>	<u>Inv. Owen Godshall</u>	<u>2/24/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u></u>	<u>IM Simon Wang</u>	<u>02/24/22</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date